

18th December 2025

APPLICATION NO: 25/00855/FUL

DESCRIPTION: Erection of a detached single storey 3-bedroom self-build dwelling and construction of a detached single storey car port with access driveway and vehicular parking

LOCATION: 124 Cheltenham Road, Bishops Cleeve, Cheltenham

Dear Chloe,

We have reviewed the Preliminary Ecological Appraisal (Arbor Vitae, May 2025) and our response with regards to ecology is below.

The site was surveyed in July 2025 and was found to comprise artificial unvegetated land, a vegetated garden, which includes a well-mown lawn, a small allotment and greenhouse, a shed and garden room, non-native hedgerows, a native hedgerow, and individual trees.

Two trees and two groups of trees will be removed to facilitate the proposed development. This includes a small group of apple trees. It has been recommended that five native fruit trees be planted to compensate for this loss. Sections of non-native hedgerow will be removed, and replacement planting, ideally with native species, has been recommended.

An ornamental fish pond is present on-site, but it will not be impacted by the proposals. It was assessed as having 'poor' suitability for great crested newts. There are no further ponds within 250m and great crested newts are considered likely absent.

None of the buildings on-site provide roosting opportunities for bats and none of the trees to be removed have potential roosting features. A sensitive lighting scheme has been recommended.

The habitats on-site provide opportunities for hedgehog and suitable mitigation has been outlined.

2 x woodcrete bird boxes, 1 x swift brick and 1 x bee brick have been recommended as enhancements.

The application is exempt from mandatory Biodiversity Net Gain under the self-build exemption.

The site lies within the Zone of Influence around the Cotswold Beechwoods SAC, and as the proposals will lead to a net increase in residential dwellings, a financial contribution to the Strategic Mitigation Strategy will be required.

Requirements prior to commencement/conditions to be attached to planning consent:

1. All works shall be carried out in full accordance with the recommendations contained in the Preliminary Ecological Appraisal (Arbor Vitae, May 2025) already submitted with the planning application and agreed in principle with the Local Planning Authority prior to determination.

Reason: To protect and enhance the site for biodiversity in accordance with paragraphs 180, 185 and 186 of the National Planning Policy Framework (Chapter 15), Policy NAT1 (Biodiversity, Geodiversity and Important Natural Features) of the Tewkesbury Borough Plan, Policy SD9 of the Joint Core Strategy Gloucester, Cheltenham and Tewkesbury 2011 – 2031 and in order for the Council to comply with Section 40 of the Natural Environment and Rural Communities Act 2006.

2. Notwithstanding the submitted details, before above ground works commence a scheme for biodiversity enhancement, such as the incorporation of permanent bat roosting feature(s), hedgehog homes and nesting opportunities for birds, shall be submitted to and agreed in writing with the Local Planning Authority. The approved details shall be implemented prior to the occupation of any of the dwelling houses hereby permitted, and thereafter retained and maintained for the lifetime of the development.

The scheme shall include, but not limited to, the following details:-

- i. Description, design or specification of the type of feature(s) or measure(s) to be undertaken;
- ii. Materials and construction to ensure long lifespan of the feature/measure;
- iii. A drawing(s) showing the location and where appropriate the elevation of the features or measures to be installed or undertaken; and
- iv. When the features or measures will be installed within the construction, occupation, or phase of the development.

Reason: To provide net gains for biodiversity in accordance with Section 40 of the NERC Act 2006, NPPF Chapter 15, the 25-year Environment plan, Policy NAT1 (Biodiversity, Geodiversity and Important Natural Features) of the Tewkesbury Borough Plan, Policy SD9 of the Joint Core Strategy Gloucester, Cheltenham and Tewkesbury 2011 – 2031. The National Planning Policy is clear that in pursuing sustainable development a core principle for planning is achieving net gains for biodiversity.

3. Prior to the installation of external lighting for the development hereby approved, a lighting design strategy shall be submitted to and approved by the Local Planning Authority. The details shall clearly demonstrate that lighting will not cause excessive light pollution or disturb or prevent bat species using key corridors, forage habitat features or accessing roost sites. The strategy will:
 - a. Identify the areas/features on site that are particularly sensitive for nocturnal species;
 - b. Show how and where external lighting will be installed (including the type of lighting), so that it can be clearly demonstrated that areas to be lit will not disturb or prevent nocturnal species using their habitats or wildlife corridors.
 - c. show the position and luminance levels of proposed external lighting and how this responds to the landscape setting of the area.

- d. Methods to control lighting control (e.g. timer operation, passive infrared sensor (PIR)).

The scheme should be implemented and maintained in accordance with the approved details for the lifetime of the development.

National Planning Policy Framework (NPPF) and Local Plan Policy (Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011 - 2031) (adopted December 2017)) Context:

- *NPPF Para 187 - 194 (Conserving and Enhancing the Natural Environment), National Planning Policy Framework¹*
- *SD9 Biodiversity and Geobiodiversity*
- *INF3 Green Infrastructure*

In England, biodiversity net gain (BNG) is mandatory under Schedule 7A of the Town and Country Planning Act 1990 (as inserted by Schedule 14 of the Environment Act 2021). Developers must deliver a biodiversity net gain of 10%. For significant on-site gains, and all off-site gains, the BNG must be maintained for at least 30 years. Responsibilities should be set out in a legal agreement. Further guidance can be found at <https://www.gov.uk/guidance/understanding-biodiversity-net-gain>

Tewkesbury Borough Plan 2011-2031²:

- *Policy NAT1 Biodiversity, Geodiversity and Important Natural Features*
- *Policy NAT2 The Water Environment*
- *Policy NAT3 – Green Infrastructure: Building with Nature.*

Wildlife legislation context:

- *Wildlife and Countryside Act 1981 (as amended)*
- *Conservation of Habitats and Species Regulations 2017*
- *Natural Environment and Rural Communities (NERC) Act 2006*
- *Protection of Badgers Act 1992*

We trust this information is helpful.

Kind regards

Lily

¹ The National Planning Policy Framework (NPPF) Paragraph 187 states:

Planning policies and decisions should contribute to and enhance the natural and local environment by.....:

d) minimising impacts on and providing net gains for biodiversity;

² Re. Policy NAT1: All proposals will be required to deliver a net gain except for those specifically excluded in the relevant statute and/or national policy and guidance. The Council will still expect all developments (with the exception of Permitted Development, Householder developments and proposals involving a material change of use where no operational development involving a loss of habitat is proposed) to deliver a minimum net gain of 10% calculated using the statutory DEFRA Biodiversity Metric (or any updated or replacement metric used as the industry standard).

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